

25CV07072 The Estate of Nicholas Brown, et al. v. The Ritz-Carlton Hotel Company, LLC, et al

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-09-16

Motion: Demurrer; Motion: Strike

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Tentative Ruling: The Estate of Nicholas Brown, et al. v. The Ritz-Carlton Hotel Company, LLC, et al

Case Number

25CV07072

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 09/16/2026 - 10:00

Nature of Proceedings

Demurrer; Motion: Strike

Tentative Ruling

For Plaintiffs Jerish Brown, individually and as heir and successor in interest of Nicholas Brown, Jesse Sirkus-Brown, individually and as heir and successor in interest of Nicholas Brown, and The Estate of Nicholas Brown: Robert J. Stoll, Jr.,

Robert J. Stoll, III, Matthew C. Stoll, The Stoll Law Firm For Plaintiff Gabriella Taylor, individually and as heir and successor in interest of Nicholas Brown: A.

Barry Cappello, Leila J. Noel, G. Michael Brelje, Cappello & Noel LLP For Defendants The Ritz-Carlton Hotel Company, LLC, Marriott International, Inc., Ruby SB Hotel LLC, and Bradley Cance: Madeline J. Suchard, Cozen O'Connor

RULING

For the reasons stated herein, the demurrer of defendants The Ritz-Carlton Hotel Company, LLC, Marriott International, Inc., Ruby SB Hotel LLC, and Bradley Cance to the first amended complaint of plaintiffs Jerish Brown and Jesse Sirkus-Brown is continued to October 21, 2026.

For the reasons stated herein, the motion of defendants The Ritz-Carlton Hotel Company, LLC, Marriott International, Inc., Ruby SB Hotel LLC, and Bradley Cance to strike the first amended complaint of plaintiffs Jerish Brown and Jesse Sirkus-Brown is continued to October 21, 2026.

Background

On November 12, 2025, plaintiffs Jerish Brown (J Brown), Jesse Sirkus-Brown (J Sirkus-Brown), Gabriella Taylor (Taylor), and The Estate of Nicholas Brown (the Estate) (collectively, Plaintiffs) filed their original complaint in this case (the Estate Action) against defendants The Ritz-Carlton Hotel Company, LLC, (the Ritz) and Marriott International, Inc., (Marriott), asserting five causes of action: (1) wrongful death (Code Civ. Proc., § 377.60); (2) survival action (Code Civ. Proc., § 377.30) (by the Estate); (3) conversion/theft of property; (4) gross negligence; and (5) premises liability.

On February 25, 2026, Taylor filed a notice of related case that identifies Santa Barbara County Superior Court case number 26CV00938 entitled Gabriella Taylor v. The Ritz-Carlton Hotel Company LLC, et al. (the Taylor Action) as related to the Estate Action.

On March 18, 2026, the court entered a minute order consolidating the Taylor Action with the Estate Action pursuant to the parties' agreement.

On March 25, 2026, J Brown and J Sirkus-Brown (collectively, the Browns) filed a first amended complaint (the Brown FAC) against the Ritz, Marriott, Ruby SB Hotel LLC (Ruby), and Bradley Cance (Cance) (collectively, Defendants), asserting five causes of action: (1) wrongful death (Code Civ. Proc., § 377.60); (2) elder abuse (Welf. & Inst. Code, § 15600 et seq.); (3) gross negligence (Civ. Code, § 377.30); (4) infliction of emotional distress; and (5) conversion. As alleged in the Brown FAC:

This case arises from the wrongful death of Nicholas Brown (N Brown), who was found unresponsive and, sometime later, deceased in the steam room at the Ritz-Carlton Bacara (the Resort) in Santa Barbara. (Brown FAC, ¶ 1.) N Brown and his wife, Taylor, were members of the Resort since 2022. (Brown FAC, ¶ 13.) The Browns, who are the natural sons of N Brown, are beneficiaries and co-executors of the Estate. (Brown FAC, ¶ 5.) Cance is the General Manager of the Resort, which is managed by the Ritz and owned and operated by Ruby. (Brown FAC, ¶¶ 7-9.) Marriott is the parent or owner of the Ritz. (Brown FAC, ¶ 6.)

N Brown frequently arrived at the Resort when it opened at 6:00 a.m. and left after it closed at 6:00 p.m. (Brown FAC, ¶ 14.) N Brown typically worked on Resort premises from an indoor workspace or outside near the pool, and interacted with Resort staff throughout the day. (Ibid.) Staff members and security at the Resort were familiar with N Brown's routine and frequently spoke to him. (Brown FAC, ¶ 13.)

On September 5, 2025, N Brown arrived at the Resort with his personal items. (Brown FAC, ¶ 15.) Resort staff members recognized that N Brown was unwell, lethargic, limping, and showing other signs of acute physical distress while on Resort premises. (Ibid.) A staff member approached N Brown and initiated a "wellness check". (Ibid.) N Brown was not given any medical aid and, despite the wellness check, was allowed to enter the steam room. (Brown FAC, ¶ 16.) Resort staff did not attempt to assist N Brown, or to call 911 or N Brown's emergency contacts to alert them about his medical condition. (Ibid.)

A patron of the Resort later discovered N Brown's nonresponsive body in the steam room and alerted Resort staff. (Brown FAC, ¶ 21.) The steam room was operating at a temperature that was unsafe for ordinary use. (Ibid.) The Resort did not have adequately trained staff or adequate lifesaving equipment even though the regular and ordinary use of the steam room

inherently creates a higher risk of potential medical emergencies for elders such as N Brown. (Brown FAC, ¶ 22.) Resort staff and Defendants also did not attempt to remove N Brown from the steam room, or to perform life saving measures. (Ibid.) When emergency medical technicians arrived at the scene much later, they attempted lifesaving procedures, and then took N Brown to the hospital where N Brown was pronounced dead. (Brown FAC, ¶ 23.)

When Taylor arrived home that evening and noticed N Brown had not returned and his car was missing, she called the Resort, identified herself as N Brown's concerned wife, and asked if anyone knew if N Brown had left the Resort. (Brown FAC, ¶ 24.) Knowing the spousal relationship between Taylor and N Brown, a staff member of the Resort told Taylor to remain on the line and, after several minutes, a staff member picked up the call and told Taylor "Body identified as Nicholas Brown found in Steam Room. Call the Sheriff." (Ibid.) That staff member, who also knew that Taylor was N Brown's wife, abruptly hung up the phone. (Ibid.)

Though the Browns repeatedly contacted authorities and requested more information about the events leading to N Brown's death, Defendants refused to respond, citing policy that was established by Marriott and the Ritz. (Brown FAC, ¶ 27.) During those interactions, the Browns asked Defendants to return N Brown's personal effects but Defendants refused those requests stating that their policy required a subpoena and court order. (Brown FAC, ¶ 28.) In addition, Cance represented that the police had recovered the items, though the police did not have possession of the items. (Ibid.) Defendants also denied a request by the local Sheriff that Defendants release N Brown's property to the Browns. (Ibid.)

Despite written demand for the immediate release of N Brown's personal effects, Defendants still have not released those effects, and the whereabouts of N Brown's jewelry remain unknown. (Brown FAC, ¶ 29.)

On July 16, Defendants filed a demurrer to the second, third, fourth, and fifth causes of action asserted in the Brown FAC; and separately filed a motion to strike paragraphs 40, 51, 58, 60, 61, 63, 65, and 67 from the Brown FAC. That demurrer and motion to strike, which the Browns oppose, are calendared for hearing on September 16, 2026.

On August 6, Taylor filed a first amended complaint (the Taylor FAC) against Defendants, asserting the same five causes of action as those described above in regard to the Brown FAC: (1) wrongful death (Code Civ. Proc., § 377.60); (2) elder abuse (Welf. & Inst. Code, § 15600 et seq.); (3) gross negligence (Civ. Code, § 377.30); (4) infliction of emotional distress; and (5) conversion.

The Taylor FAC contains identical or nearly identical allegations as those asserted in the Brown FAC, including in regard to N Brown's membership with and arrival at the Resort on September 5, 2025; the relationship between Defendants, N Brown, and Taylor; the "wellness check" of N Brown initiated by staff members of the Resort; N Brown's entry into the sauna at the Resort; the later discovery of N Brown's body; the alleged failure of the Resort to render life saving measures to N Brown; the manner in which Taylor was informed of N Brown's death at the Resort; and the alleged failure of Defendants to return the personal belongings of N Brown, among other allegations. (Taylor FAC, ¶¶ 1-3, 5-9, & 13-29.)

On August 24, Defendants filed a demurrer to the second, third, and fourth causes of action asserted in the Taylor FAC, and separately filed a motion to strike paragraphs 41, 42, 48, 54, 61, 64, 65, 66, 67, 69, and 71 from the Taylor FAC. That demurrer and motion to strike are calendared for hearing on October 21, 2026.

Analysis

The grounds asserted by Defendants in their demurrer to and motion to strike the Brown FAC are the same or effectively the same as those asserted in Defendants' demurrer to and motion to strike the Taylor FAC. As the allegations giving rise to the causes of action asserted in the Brown FAC and the Taylor FAC are, as noted above, identical or nearly identical, and in the interest of judicial efficiency and consistency in the court's rulings, the court will continue the hearing on the demurrer to and motion to strike portions of the Brown FAC to October 21, 2026, to be heard concurrently with the demurrer to and motion to strike portions of the Taylor FAC.

Judges

Judge Thomas Anderle

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